

The Claremont City Council held a meeting on Wednesday, June 24, 2020, at the Claremont Savings Bank Community Center, 152 South Street.

The meeting was called to order by Mayor Lovett at 6:31 p.m.

Members of the Council present were:

Ward I Councilor Andrew O’Hearne
At-Large Councilor Abigail Kier
At-Large Councilor Erica Sweetser
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Debora Matteau (on the phone for the beginning of the meeting)
At-Large Councilor Nicholas Koloski
Ward II Councilor James Contois (on the phone)
Ward III Councilor Jonathan Stone

Also present:

Edward Morris, City Manager

Mayor Lovett reminded people watching on Facebook that they could call 1(425)436-6328; Access Code: 294604#, if they wished to speak to an item.

AGENDA CHANGES

None

MAYOR’S NOTES

Mayor Lovett said the next Council meeting will be July 8th. She wished everyone a Happy 4th of July and she reminded everyone to keep in mind CDC guidelines. She thanked community members for their efforts beautifying their properties.

CITY MANAGER’S REPORT

- Gave a brief overview of the compensation study. There has been a 70% return rate of other community surveys.
- Continues to encourage people to fill out the Census form. Census data is used to distribute funding to communities.
- Claremont Fire Department is hosting six trainings for Census workers in August.
- 139 Main Street bid will be opened July 10th and we’ll schedule the demolition as soon as possible thereafter.

- Broad Street and Tremont Street paving – there were some signage issues and that is being worked on. Milling will be done today. The millings will be taken to Sugar River Drive.
- City complex HVAC and roofing project will start July 6 and should be done by the end of July, or the first week in August.

COVID-19 Update

Mr. Morris said the numbers are continuing to go down. He reminded everyone to wear masks, wash hands and continue social distancing. Claremont Savings Bank Community Center (CSBCC) is open with some restrictions. The Library is open with some limitations. Starting Monday, all but one employee will be back from furlough. The requested GOFERR funding is just over \$27,000, with the majority being Welfare reimbursements. We will be working on the second round of funding.

Mr. Morris reminded everyone to be careful this 4th of July. There has not been a lot of rain and there are a lot of personal fireworks out there. Be aware and safe.

Councilor Contois said that because of COVID-19, there are 347 dead people. He said Dr Fauci continues to be concerned. Mr. Morris said Sullivan County's numbers are going down. There is only one active case in Claremont.

CITIZEN'S FORUM

Matt Mooshian, Ward 2, said over the weekend he became aware of harmful rhetoric from Councilor Stone that was worthy of condemnation. He said this is an example of people using their platform to incite violence toward others. He called on Councilors to censure Councilor Stone. This is about keeping our community moving forward.

Rebecca Mackenzie, Ward 2, reiterated what Mr. Mooshian said. She shared a prayer of healing.

OLD BUSINESS

Up on the Hill Conservation Area

A motion was made by Councilor Koloski and seconded by Councilor O'Hearne remove Up on the Hill Conservation Area from the table.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0

Mr. Morris gave a brief overview of a parking lot that was being worked on, off Bible Hill Road.

Nancy Merrill, Planning and Development Director, said that abutters were notified of this discussion and they, along with the Upper Valley Land Trust (UVLT), and the contractors were in attendance.

Jason Berard, Stewardship Director Upper Valley Land Trust, said they want to build a parking lot on the Up On the Hill Conservation Area. There is no place to park on the Claremont side of the property, other than on the side of the Class VI road. For this gift to be meaningful, it is important to have the parking area.

Albert St. Pierre, St. Pierre Inc., gave some information about the requested parking lot. He said Harvey Hill, donor of the land to the UVLT, had requested the parking lot. Mr. St. Pierre said he assumed the 60 ft. x 100 ft. piece of land was in Charlestown. He estimates it will take less than five days to complete the parking lot.

It was determined that no survey had been done to confirm whether or not the contractor was in Claremont. However, Mr. St. Pierre said he knew he was on Harvey's land. Mr. Berard said he met the contractor onsite and asked them to obtain the necessary permits. He said he typically relies on the permitting process for notifying neighbors. He said he has contacted the neighbors to explain and address their concerns. Some concerns were dumping, maintenance of the roads, and nefarious activities. His experience has been that when you build a parking lot, dumping usually goes down. He understands that police patrol the area. He said all facilities are carry in and carry out of trash. UVLT staff will visit the property once a week to monitor. There is a pullout that is not on the conservation area and when they see trash, they take it out. They will have to figure out funding for plowing the lot in the winter. In the spring, it was noted a large red and white sign was removed and a gate was added. UVLT will take it down. The parking lot is on the Class VI road. The trail starts at the gate. The gate is after the parking lot.

Ms. Merrill confirmed this is taking place on the Class VI road and the gate is just beyond it.

Judge John Yazinski, Ward 2, gave some history starting in the 1800s. He said snowmobilers were concerned they wouldn't be able to use the road, so in 1998, as the City Attorney, he was instructed to make it a trail. The City installed a big sign stating the road was not maintained. Last fall, the sign was removed and a gate installed. While the work was being done, he assumed permits had been gotten. He said it is a dirt road and when the rain washes it out, it becomes a one lane road. The parking lot is on a Class VI road that is not maintained. To encourage cars to go up a single lane road, doesn't make sense.

At 7:14 p.m., Councilor Matteau said she could not hear what was being said at the podium, so she was on her way to the meeting.

Mayor Lovett said the Council received letters from abutters, the McNeils and Stringers. The Stringers asked who would maintain the road. Mayor Lovett said the City is not responsible and she was not sure if the UVLT would do it. Second question is who would police the parking lot. Mayor Lovett said Mr. Berard said the UVLT would do it once a week. Third question was about the road being very narrow and becoming a one-lane road during mud season. Mayor Lovett said her understanding was that people using the road are supposed to be people who live on that road and those who have received permission. She said Mr. Berard had said drivers would use the road mostly in the summer months.

At 7:21 p.m. Councilor Matteau arrived.

Police Chief Mark Chase said this is very rural area and the Police Department is not up there a lot. If this was completed, he suspects the residents would police it. He was not sure what assurances he could give.

Councilors did not appear to be in favor. They agreed to make the motion, even though it was written in the affirmative, in order to take the vote.

A motion was made by Assistant Mayor Damren and seconded by Ms. Kier that in accordance with NH RSA 236:9, the Claremont City Council hereby authorizes the Upper Valley Land Trust or its designees to disturb a portion of Bible Hill Class VI Road on Map 208, Lot 1 as identified on a map submitted as Site Development Plans for Harvey and Christina Hill dated May 20, 2020, and summarized in a May 20, 2020, letter from the Upper Valley Land Trust. The purpose of the disturbance is to create an entrance to a trail head parking lot at Up on the Hill Conservation Area. The City will not undertake any improvement or maintenance of the Class VI road as a result of the project.

Mayor Lovett opened the discussion to the public.

Walt Stapleton, Ward 3 resident and House Representative for Ward 3, said that he is an outdoor person who likes to hunt and hike. He encouraged the Council to vote for this to make the land available to the public.

Roll call vote:

O'Hearne - no

Kier - no

Sweetser - no

Damren - no

Matteau - no

Koloski - no

Contois - no

Stone - no

Lovett - no

Motion failed 0-9.

Councilors asked the City Manager to rectify the gate that was put up and to replace the sign.

Approval/Denial of Police Union Contract

Mr. Morris said Council had had two non-meetings to discuss this. The increase is less than the increase from the last contract. He thinks it is a good and fair contract.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Damren to approve a Collective Bargaining Agreement between the City of Claremont and NEBA, Local 217 (Claremont Police Union), which calls for the following increases in salary and benefits:

<u>Year</u>	<u>Estimated Increase (Salary & Benefits)</u>
FY 2021	\$51,836
FY 2022	\$66,880
FY 2023	\$74,320

Said sums represent the additional costs attributable to the increase in salaries and benefits over those funds appropriated at current staffing levels. The increase for 2021 is included in the proposed fiscal year 2021 budget, with no additional impact on the tax rate.

The City Council further authorizes the city manager, or his designees, to take such actions as may be necessary to implement this motion.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

NEW BUSINESS

Pleasant Street Project and Truck Route Presentation

Mr. Morris said the City is moving toward a bond vote in August, so at each Council meeting, he will bring forth information to start to paint a picture of this project. Engineers will make a presentation at the July 8th Council meeting. He talked about formulating a way to do a public forum earlier in the day of the meeting.

Ms. Merrill said the City has been working with NH Department of Transportation (DOT) on a truck route. They are a part of this discussion. She showed slides/handouts. Water and sewer work that ended at the Daddypops Tumble Inn Diner will be tied into this work. Water Street will be a part of this. Pleasant Street is the truck route. There have been public hearings. Parking, lighting and walkways will be addressed. Alternative #2 is to make Pleasant Street a one-way, head-in parking, sidewalks will be 7 feet wider than existing, and there will be a new traffic pattern. This will continue to be a state road. The estimate includes concrete on the surface of the sidewalks. There will be public hearings about what people want regarding sidewalks, trees, etc. There will be seven fewer parking spaces on Pleasant Street, but that will be made up on School Street. When the Downtown TIFD (Tax Incremental Finance District) was created, it had an \$11 million value and now has \$26 million. There are a couple of properties participating under RSA 79-E, Community Revitalization Tax Relief Incentive.

Budget Hearing and Vote

Mr. Morris said the number used for this budget proposal was the tax rate from the previous year, which gave us a \$0.09 decrease. However, as reported at the last meeting, the City should be getting its entire meals & rooms tax. So, that will lower the tax rate to \$14.91, which is the number he's been talking about all along. Plans have been put in place in order to avoid this confusion in the future.

Councilors were satisfied with Mr. Morris' explanation and changes going forward.

Resolution 2021-1 Tax Anticipation Note – Public Hearing

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing duly noticed, pursuant to the Municipal Finance Act, that the City Treasurer, with the approval of the City Manager, is hereby authorized to issue and sell notes of the City of Claremont, in an amount not to exceed \$4,000,000.00 in anticipation of receipt of taxes for the fiscal year 2021.

Such amount will not exceed the total tax levy for the year 2020. *(Majority Vote Required)*

A motion was made by Assistant Mayor Damren and seconded by Ms. Kier to adopt Resolution 2021-1 Tax Anticipation Note.

Assistant Mayor Damren read the resolution into the record. He asked why more money was requested for this year. Ms. Walter said with COVID-19, the City is not sure what would be needed. If the money is not needed, the TAN won't be used. Assistant Mayor Damren said the fiscal year should read 2021. Ms. Walter agreed.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Resolution 2021-2 To Adopt the 2021 General Fund Budget for the City of Claremont –
Public Hearing

WHEREAS in accordance with the Charter of the City of Claremont, and the Statutes of the State of New Hampshire, the City Council is required to establish a budget for its appropriations and revenues for its municipal activities; and

WHEREAS in accordance with said Charter, a public hearing was held on June 24, 2020;

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, that it adopts the following for its proposed expenditures and revenues for all departments for its 2021 fiscal year as follows. *(Majority Vote Required)*

2021 GENERAL FUND

Expenditure Summary:

Policy and Administration

Policy	\$	579,870	
City Administration		879,438	
Elections & Registrations		15,700	
Assessing		205,842	
Municipal Complex		371,459	
Planning & Development		825,446	
General Services		914,869	904,869

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Public Safety

Communications – 911	\$ 560,678	
Police Department	3,012,297	
Fire Department	2,534,087	2,529,187

Health & Welfare

Welfare Department	\$ 391,902	
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Public Works

Sanitation	\$ 196,123	
Streets & Roads	3,401,672	3,403,172

Library	401,942	403,442
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Debt Service	\$ 1,155,003	
Public Service Enterprises		

Cemetery	\$ 192,617	
Airport	152,965	

Recreation & Parks

Parks	\$ 390,974	
CSB-Recreation	1,150,390	

Outside Agency	\$ 30,000	
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TOTAL	\$17,363,274	17,351,374
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Revenue Summary:

Taxes	\$ 17,050	
Interest on Taxes	400,000	
State of New Hampshire	1,155,500	\$1,370,810
Licenses/Permits/Fees	2,208,830	
Departmental Revenue	1,148,659	
Rent of City Property	73,168	
Payments in Lieu of Taxes	98,683	
Miscellaneous Revenue	122,730	
From Fund Balance	687,240	\$660,930
From Capital Reserve	37,898	\$45,898

REVENUE TOTAL	\$ 5,974,758	\$6,172,758
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A motion was made by Ms. Kier and seconded by Councilor Matteau to adopt Resolution 2021-2 To Adopt the 2021 General Fund Budget for the City of Claremont.

Ms. Kier read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Resolution 2021-3 To Adopt the 2021 Water Division Budget for the City of Claremont –
Public Hearing

WHEREAS in accordance with the Charter of the City of Claremont and the Statutes of the State of New Hampshire, the City Council is required to establish a budget for its appropriations and revenues for its municipal activities; and

WHEREAS in accordance with said Charter, a public hearing was held on June 24, 2020 to provide oral and written comments on said proposed appropriations and revenues; and

WHEREAS the City of Claremont Water and Sewer Divisions are operated as separate entities and by revenues derived from their individual enterprises;

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, that it hereby adopts the following for its proposed expenditures and revenues for the Water Division as follows. *(Majority Vote Required)*

2021 PROPOSED WATER DIVISION BUDGET

REVENUE

Water Revenue	\$1,967,507
Miscellaneous Revenue	27,000
From Retained Earnings/Fund Balance	0

TOTAL	\$1,994,507
EXPENSE	
Water Department	\$1,994,507
TOTAL	\$1,994,507

A motion was made by Ms. Kier and seconded by Councilor Koloski to adopt Resolution 2021-3 To Adopt the 2021 Water Division Budget for the City of Claremont.

Ms. Kier read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Resolution 2021-4 To Adopt the 2021 Sewer Division Budget for the City of Claremont –
Public Hearing

WHEREAS in accordance with the Charter of the City of Claremont and the Statutes of the State of New Hampshire, the City Council is required to establish a budget for its appropriations and revenues for its municipal activities; and

WHEREAS in accordance with said Charter, a public hearing was held on June 24, 2020 to provide oral and written comments on said proposed appropriations and revenues; and

WHEREAS the City of Claremont Water and Sewer Divisions are operated as separate entities and by revenues derived from their individual enterprises;

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, that it hereby adopts the following for its proposed expenditures and revenues for the Sewer Division as follows. *(Majority Vote Required)*

2021 PROPOSED SEWER DIVISION BUDGET

REVENUE

Sewer Revenue	\$2,524,570
Miscellaneous Revenue	186,390

TOTAL	\$2,710,960
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EXPENSE

Sewer Department	\$2,710,960
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TOTAL	\$2,710,960
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A motion was made by Councilor Contois and seconded by Ms. Kier to adopt Resolution 2021-4 To Adopt the 2021 Sewer Division Budget for the City of Claremont.

Councilor Contois read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Resolution 2021-5 To Adopt the 2021 Downtown Tax Increment Finance District Budget for the City of Claremont – Public Hearing

WHEREAS in accordance with the Charter of the City of Claremont and the Statutes of the State of New Hampshire, the City Council is required to establish a budget for its appropriations and revenues for its municipal activities; and

WHEREAS in accordance with said Charter, a public hearing was held on June 24, 2020 to provide oral and written comments on said proposed appropriations and revenues; and

WHEREAS in accordance with RSA 162-K:12 the City Council must review and approve the operating budget of a tax increment finance district;

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, that it hereby adopts the following for its proposed expenditures and revenues for the Downtown Tax Increment Finance District. *(Majority Vote Required)*

**2021 PROPOSED TAX INCREMENT FINANCE
DISTRICT BUDGET – DOWNTOWN**

REVENUE

Revenues	\$745,250	735,250
TOTAL	\$745,250	735,250

EXPENSE

Expenses	\$745,250	735,250
TOTAL	\$745,250	735,250

A motion was made by Assistant Mayor Damren and seconded by Ms. Kier to adopt Resolution 2021-5 To Adopt the 2021 Downtown Tax Increment Finance District Budget for the City of Claremont.

Assistant Mayor Damren read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Mayor Lovett reminded everyone that there will be a more in-depth explanation of the Pleasant Street Project on the afternoon of July 8th.

Resolution 2020-30 Accept and Expend CARES Act Group 4 Non-Development
Reimbursement Grant – Public Hearing

WHEREAS The Claremont Municipal Airport was notified by NHDOT, Bureau of Aeronautics and U.S Secretary of Transportation on April 14, 2020, that the airport facility was eligible for reimbursement of operating costs under the provision of the CARES (Coronavirus Aid, Relief, and Economic Security) Act not to exceed \$30,000.00; and

WHEREAS The eligible costs encompass expenses dating back to January 20, 2020 and \$30,000.00 of the aviation fuel that was purchased on January 28, 2020 is eligible for reimbursement; and

WHEREAS the City would like to now accept and expend said funds;

NOW THEREFORE BE IT RESOLVED to raise, appropriate and expend the sum of \$30,000.00 with said funds to come from the CARES Act to have no impact on the tax rate. The funds will be deposited into the City of Claremont Airport Reserve Fund for future airport expenditures; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(Majority Vote Required)*

Fire Chief Bryan Burr said winter is the time to buy aviation fuel. In late January the Airport purchased 8,500 gallons for \$30,686. This grant will cover \$30,000 of that cost. He said he will be back regarding two grants (Environmental Assessment and Phase 1 of the Apron Project) that the City will get \$15,000 (5% match) back.

A motion was made by Councilor Sweetser and seconded by Councilor O’Hearne to adopt Resolution 2020-30 Accept and Expend CARES Act Group 4 Non-Development Reimbursement Grant.

Councilor Sweetser read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Ordinance 575 Water Rates – First Reading

The purpose of this proposed change is to amend the City's 2021 water rates and maintain the current 2020 rates for the following year. The Covid-19 pandemic and resulting Emergency Orders by the State of New Hampshire have created economic hardship for both residents and businesses within the City. In particular, small business is expected to suffer the greatest financial losses associated with the shutdown and such impact will be felt well into 2021. In recognition of the adversity that businesses and residents must cope with in terms of a struggling economy, the City seeks to institute some level of relief in the form of avoiding an increase of the City's water rates for 2021.

It is the hope of the City that this avoidance of a water rate increase in 2021 will help, to some degree, with alleviating the financial stresses of the pandemic to allow residents as well as businesses to move forward and prosper in 2021. This change is requested by the City Manager.

Mr. Morris said the City is recommending to keep the water rates level, and not have an increase this year. Also, this ordinance addresses the hydrant payment that was brought forth by Interim City Manager John MacLean last year.

A motion was made by Assistant Mayor Damren, but was not seconded, to adopt Ordinance 575 Water Rates.

Assistant Mayor Damren read the explanation of proposed action and after reading a portion of the ordinance, Mayor Lovett asked if this should be quarterly, instead of semi-annually. Councilors agreed this should be corrected and then moved back to first reading at the July 8 meeting.

Resolution 2020-32 Energy Improvements for the Public Works Building – Public Hearing

WHEREAS, an Energy Audit was prepared by Sustainable Energy Education Demonstration Services and was funded by Eversource Energy in May, 2019; and

WHEREAS, the City wishes to incorporate some of its recommendations by completing various projects included in the audit; and

WHEREAS, several areas of the west wall are showing considerable structural decay because the blocks have suffered from freeze/thaw conditions and settling which represents over a 40% loss of heat; and

NOW, THEREFORE, BE IT RESOLVED, in order to become more energy efficient, the City wishes to insulate the exterior of the concrete block walls and above the roof decks by installing exterior rigid foam insulated siding – 3" R15; and

BE IT FURTHER RESOLVED that the cost of the project will be \$90,638.00 with Eversource providing an incentive of \$45,319; and

BE IT FURTHER RESOLVED to raise and appropriate the sum of \$90,638 with the City providing \$45,319 from (3) separate budgets for Building and Maintenance Repairs: – 01-441-510-0000; 90-490-510-0000; and 92-492-510-0000; with the remaining \$45,319 coming from unanticipated revenue from Eversource’s rebate incentive and;

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to revoke Resolution 2020-21 (dated April 22, 2020) and thus, undertake all actions and execute all documents related to this resolution.

Mr. Morris said some electric issues were found. The cost of the project went up a little and Eversource’s contribution also went up. So, the City is asking to withdraw the previous resolution and approve this one.

A motion was made by Councilor Contois and seconded by Councilor Koloski to adopt Resolution 2020-32 Energy Improvements for the Public Works Building.

Councilor Contois read the resolution into the record.

Vic St. Pierre, Public Works Director, said this will extend the life of the building. Payback is expected to be two years in fuel. Another project that will be coming up is for LED lights.

Mayor Lovett asked Mr. Morris at some point to have an update on the energy audit.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Code of Conduct Discussion

Councilor Stone referenced an email that was sent from the City Manager to the Council with information that an employee (Kaitlyn Kier, Councilor Kier’s sister-in-law) was hired by the

City after Councilor Kier was elected to the Council. He asked why this was not disclosed and said this was a violation of the Code of Conduct.

Councilor Kier stated that she is a volunteer, not an employee. She said that Kaitlyn had asked if this was a problem and was told that it wasn't. Kaitlyn is filling a 6-hour a week part-time yoga instructor position. Councilor Kier said she met with her personal attorney, and the attorney sees this as outside the intention of the Code of Conduct.

Mayor Lovett reminded the Council that they were in receipt of an end of the year report from the Policy Committee that recommended the Council consider adopting an ethics policy.

Councilor Stone said regarding the Nepotism policy, that there is no definition of part-time; the Councilor failed to notify the Council of this hiring; and he would like to know why there was no disclosure. Councilors Kier and Matteau replied to the question.

Mayor Lovett asked if anyone from the public wished to speak. She read a letter from Sam Killay Ward 3, stating that he is concerned about corruption regarding Councilor Stone. He said that Councilor Stone is facing censure and now is going after Councilor Kier.

Councilor Koloski stated that he was concerned about people sending in long letters, to be read at the Council meeting, that circumvent the 5 minutes time limit. Mayor Lovett said that can be a future agenda item.

After the Council discussion, Mayor Lovett said the action items are to update the employment application to include asking if the applicant is related to Councilors as well as employees; she will check for Policy Committee recommendations; and she would like to get back to spending time on the business of the Council. Unless something egregious happens, Council should discuss it and then move on.

Councilor Stone talked about not bogging down the City with national politics, but that Councilors need to do City business.

Without any changes from Mayor Lovett's list of action items, Councilors agreed to move on.

Censure Request

Councilor Kier said this was for discussion about Councilor Stone's social media posts. She said she is concerned when a Councilor says something misleading or damaging as a representative of the Council. She said censure is a disapproval. For her, this states to constituents that Councilors don't condone the action.

There was a discussion about Councilor Stone's social media post(s) regarding his disapproval of the use of face masks being mandatory, and comments regarding Black Lives Matter (BLM) and Antifa.

Councilor O'Hearne said Council Rules were silent on this issue, therefore Roberts Rules would apply, and since the action didn't happen in a Council meeting, censure does not apply.

Councilor Stone said his comments about BLM and Antifa were taken out of context.

Mayor Lovett reminded Councilors about a previous legal opinion that said to censure someone, unless for an egregious action, the ultimate result is division of the board and it doesn't serve anybody.

A motion was made by Councilor Contois and seconded by Councilor Kier to censure Councilor Stone for his Facebook comments regarding Black Lives Matter and for his comments falsifying what was said at the Council meeting.

Councilor Stone said he believes Council does not have the authority to censure unless the incident happened during a Council meeting.

A motion was made by Councilor Koloski and seconded by Councilor O'Hearne to table the motion until we secure a legal opinion.

Councilor Koloski clarified when the legal opinion is received, Council can revisit this issue.

Roll call vote:

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - no

Stone - no

Lovett - yes

Motion carried 7-2.

Councilor Stone suggested using the legal opinion we already have.

In order to save money, Councilors, except Councilor Contois, agreed to reach out to NHMA (NH Municipal Association). Mayor Lovett will write to NHMA.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett asked if Councilors wanted to go back to the Zoom platform. There was a consensus of the majority of the Council to resume Zoom meetings, for now.

Councilor Koloski asked for an update on maintenance of the Visitors Center Green and the bowstring bridge. He would be satisfied if the information were presented in the City Manager's Report. Mr. Morris said he is working on a maintenance plan.

Councilor Koloski asked about CCTV's (Claremont Community Television) status. There are not many people on the board. He wants to make sure the City is helping CCTV, if needed. He would like an update in the City Manager's Report.

Councilor Koloski would like to know if Ordinance 537 Disposal of City Property is being followed in order to dispose of City surplus.

Councilor Stone asked who is on the Claremont Community Television, Inc. Board of Directors. Assistant Mayor Damren said that, at a future Council meeting, he would like to be appointed to that board as the City Council Representative. Mayor Lovett said it could be addressed under Appointment to Boards and Committees at the next meeting.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:59 p.m., a motion was made by Councilor O'Hearne and seconded by Councilor Matteau to adjourn.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council